

BC572198 BC572198

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Case Number: BC572198 Hearing Date: July 8, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 8, 2026 TRIAL DATE: August 11, 2026

CASE: Ryan Stanton v. Frances Fontane Marques,
et al.

CASE

NO.: BC572198

(1) MOTION FOR SUMMARY ADJUDICATION

(2) RENEWED MOTION FOR SUMMARY
JUDGMENT

MOVING

PARTY: (1) Plaintiff Ryan Stanton; (2) Defendants

Frances Marques, Pablynie Marques Jamison, Modern Medical Management, LLC, and
Marques Management, LLC

RESPONDING

PARTY(S): (1) Defendants

Frances Marques, Pablynie Marques Jamison, Modern Medical Management, LLC, and

Marques Management, LLC (2) Plaintiff Ryan Stanton

TENTATIVE
RULING

Stanton's Motion for Summary
Adjudication is DENIED.

Defendants'
Renewed Motion for Summary Judgment is DENIED.

Moving parties to give notice.

DISCUSSION:

This
case is (on both sides) an object lesson in the importance of preparing proper
separate statements in connection with motions for summary adjudication and
summary judgment.

Motion for Summary Adjudication
(Stanton)

Stanton
moves for summary adjudication of the third cause of action for breach of
operating agreement, fourth cause of action for breach of fiduciary duty, sixth
cause of action for constructive fraud, ninth cause of action for violation of
Penal Code section 496, and tenth cause of action for fraudulent transfer.

The Court denies the motion. The separate statement is so deficient that
the Court cannot (or, at a minimum, in the Court's view should not) rule on the
merits of the motion.

In
bringing a motion for summary judgment or summary adjudication, the supporting
papers must include "a separate statement setting forth plainly and concisely
all material facts that the moving party contends are undisputed." (Code Civ.
Proc. § 437c(b)(1).) Each of the material facts stated "shall be followed by a
reference to the supporting evidence." (Id.) "The requirement of a
separate statement from the moving party and a responding statement from the

party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed.” (Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co. (2005) 133 Cal.App.4th 1197, 1210.) This separate statement must be presented in the two column format specified in the Rules of Court and must “separately” identify “[e]ach supporting material fact claimed to be without dispute with respect to the cause of action” –that is, each cause of action – “that is the subject of the motion.” (Cal Rules of Court Rule 3.1350(d)(1)(B); subd. (h).)

Stanton

has not followed this rule. Rather than present each material fact with direct citations to the evidence tending to prove those facts, Stanton has simply offered a set of bare legal conclusions and sweeping references with bulk citations to this Court’s prior rulings. Those rulings are not themselves evidence foreclosing the existence of a triable issue of fact. Nor are they dispositive of any of these issues, because the Court’s findings on a lis pendens motion or a motion for preliminary injunction are not subject to the same standards as a motion for summary judgment. By failing to present the underlying evidence, Stanton’s Separate Statement does not serve either essential function. This defective Separate Statement cannot be fairly said to put Defendants on notice of the material facts at issue. Moreover, the Separate Statement certainly does not permit this Court to focus on whether the facts are truly undisputed, as Stanton instead asks the Court to sort through the assembled discovery material to determine what facts are indeed material. Although the body of the moving papers repeatedly cite underlying evidence, that is not a substitute for the failure to present all material facts and supporting evidence in the Separate Statement itself. The Golden Rule of Summary Adjudication is “if it is not set forth in the separate statement, it does not exist.” (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337 [italics in original].) The failure to provide a separate statement is, in the Court’s discretion, grounds for denial of the motion. (Code Civ. Proc. § 437c(b)(1).) Appellate precedent has consistently encouraged trial courts to require strict compliance with the requirements for separate statements. (United Community Church, supra, 231 Cal.App.3d at 335; North Coast Business Park v. Nielsen Construction Co. (1993) 17 Cal.App.4th 22, 30-32.) As the Court of Appeal for the Fourth District has bluntly stated, “[t]rial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement.” (Beltran v.

Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876.) Because Stanton has failed to draft a compliant Separate Statement, that discretion is exercised here to deny the motion.

Accordingly,

Stanton's Motion for Summary Adjudication is DENIED.

Renewed

Motion for Summary Judgment (Defendants)

Defendants

move for summary judgment on all causes of action. For the third time, Defendants argue that Stanton lacks standing to pursue his claims. This is an improper renewed motion under Code of Civil Procedure section 437c(f)(2). For that reason alone, the Court can and does deny the motion. Separately, Defendants also attempt to argue that Stanton cannot present evidence to support his claims on their merits. However, Defendants have (as they did in their prior motions) failed to draft a compliant separate statement that separately identifies each material fact with respect to each cause of action asserted against them. (Cal Rules of Court Rule 3.1350(d)(1)(B); subd. (h).) The Court therefore exercises its discretion to deny the motion for a non-compliant separate statement. (Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876.)

Accordingly,

Defendants' Renewed Motion for Summary Judgment is DENIED.

CONCLUSION:

Stanton's

Motion for Summary Adjudication is DENIED.

Defendants'

Renewed Motion for Summary Judgment is DENIED.

Moving parties to give notice.

IT IS

SO ORDERED.

Dated: July 8, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.